

IN THE SENATE

SENATE BILL NO. 1271, As Amended

BY AGRICULTURAL AFFAIRS COMMITTEE

AN ACT

RELATING TO ABATEMENT OF RATS; AMENDING TITLE 52, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 5, TITLE 52, IDAHO CODE, TO DECLARE CERTAIN RATS A PUBLIC HEALTH AND SAFETY NUISANCE AND TO REQUIRE THE DIRECTOR OF THE DEPARTMENT OF AGRICULTURE TO DETERMINE THE EXTENT AND SCOPE OF SUCH RATS IN IDAHO AND WHETHER ABATEMENT IS NECESSARY; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 52, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 5, Title 52, Idaho Code, and to read as follows:

CHAPTER 5

PUBLIC HEALTH AND SAFETY NUISANCES

52-501. RODENTS OF UNUSUAL SIZE -- NUISANCES. (1) The legislature finds that the state of Idaho, in particular its more metropolitan areas, has seen a dramatic increase in the presence of rats, which is especially concerning given their lack of historic presence in Idaho and their ability to easily transport diseases that are transmittable to humans and to cause economic damage to agriculture and property.

(2) The Norway rat and the roof rat (rats) are hereby declared to be:

(a) A public health and safety nuisance, pursuant to the provisions of this section;

(b) An invasive species for the purposes of chapter 19, title 22, Idaho Code;

(c) An agricultural pest for the purposes of chapter 26, title 25, Idaho Code; and

(d) A vermin and public health and welfare pest for the purposes of chapter 28, title 39, Idaho Code.

(3) The director of the department of agriculture shall:

(a) Coordinate efforts, to the maximum extent possible, with:

(i) The boards of county commissioners within Idaho;

(ii) Control districts, the boards thereof, and the boards of county commissioners operating pursuant to chapter 26, title 25, Idaho Code;

(iii) Abatement districts, the boards thereof, and the boards of county commissioners operating pursuant to chapter 28, title 39, Idaho Code;

(iv) Public health districts and the boards thereof, pursuant to chapter 4, title 39, Idaho Code;

1 (v) Any other state agency, department, or political subdivision
 2 that the director determines necessary to enact the provisions of
 3 this section; and
 4 (vi) Any other entity, public or private, that the director deter-
 5 mines necessary to coordinate or contract with to enact the provi-
 6 sions of this section, including to promote public education mate-
 7 rials;
 8 (b) Develop and implement a coordinated plan to engage the public, po-
 9 litical subdivisions, and other relevant stakeholders to determine the
 10 extent and scope of rats in Idaho; and
 11 (c) Develop and distribute public education material that promotes on-
 12 going reporting and best practices to prevent and eradicate rats.
 13 (4) The finding of a rat in Idaho is encouraged to be promptly reported
 14 to the department of agriculture.
 15 (a) The department shall collect and compile all such reports regarding
 16 the presence of rats in order to determine:
 17 (i) The movement and location of the rats;
 18 (ii) Where abatement is necessary;
 19 (iii) The type of abatement that is necessary; and
 20 (iv) Where the department may need assistance to abate the rats.
 21 (b) Such reports and educational materials shall be made publicly
 22 available on the department's website.
 23 (5) The department shall use such reports to create an abatement plan
 24 that includes ongoing public education material distribution.
 25 (a) The abatement plan shall:
 26 (i) Summarize the extent and scope of rats in Idaho;
 27 (ii) Describe the actions already taken and that are currently in
 28 progress to address the rats;
 29 (iii) Describe any planned future actions to address the rats;
 30 (iv) Provide information on how to report the presence of rats to
 31 the department; and
 32 (v) Provide accessible ways to prevent or eliminate rats within
 33 the community and household.
 34 (b) The abatement plan shall be made publicly available on the depart-
 35 ment's website.
 36 (c) The department shall review and update, if necessary, the abatement
 37 plan at least every three (3) years.
 38 (d) The director shall present and provide the abatement plan to the
 39 following legislative bodies for review during the 2027 legislative
 40 session and any legislative session following a revision of the plan:
 41 (i) The house and senate agricultural affairs committees;
 42 (ii) The joint finance-appropriations committee; and
 43 (iii) The interim committee on natural resources, if so requested.
 44 (e) If the director determines that abatement actions should be under-
 45 taken, the anticipated costs to abate the rats shall be included in the
 46 director's report. Such moneys may be requested by the director and ap-
 47 propriated by the legislature.
 48 (6) State agencies and political subdivisions shall make themselves
 49 available, subject to available personnel, equipment, and funding, to as-
 50 sist the department in enacting the provisions of this section. Nothing in

1 this section shall require mandatory participation or the expenditure of
2 local funds.

3 (7) This section shall be known and may be cited as "The Idaho Rodents of
4 Unusual Size Act."

5 SECTION 2. An emergency existing therefor, which emergency is hereby
6 declared to exist, this act shall be in full force and effect on and after its
7 passage and approval.